

09:00 AM

25-CIV-02273      MIRAY YARASIR VS. DOUBLE AA CORPORATION, ET AL  
LINE 5

MIRAY YARASIR  
DOUBLE AA CORPORATION

ROBERT F BUZZARD  
VASTI STEPHANY  
MONTIEL

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DEFENDANT DOUBLE AA CORPORATION'S DEMURRER TO PLAINTIFFS FIRST  
AMENDED COMPLAINT

TENTATIVE RULING:

Defendant Double AA Corporation's Demurrer to Plaintiff Miray Yarasir's First Amended Complaint is SUSTAINED IN PART and OVERRULED IN PART.

Defendant Double AA Corporation ("Double AA") demurs to each cause of action asserted against it in the First Amended Complaint ("FAC"), both generally and specially for uncertainty. The general basis of the FAC is a February 12, 2025 incident in which Plaintiff Miray Yarasir was allegedly attacked and beaten by Defendant Hyiat Aish while working on premises controlled by Yarasir's employer, Double AA, while two other employees watched and failed to intervene or summon law enforcement. (Oct. 22, 2025 First Amended Complaint ("FAC"), ¶¶ 3, 7, 9.)

*A. 2nd & 6th Causes of Action: Negligence & Premises Liability*

The second cause of action is for negligence, and Double AA's liability is based on its "negligent allowance of [Aish] on the Premises despite knowledge of her anger and dangerous propensities, and the failure of its employees Anna Abushi and Ianho XXXXXX to intervene or call the police." (FAC, ¶ 18.) The sixth cause of action is for premises liability, which is merely a species of negligence, and is based on the same allegations. (*Id.*, at ¶ 34.)

Double AA first contends that the fact that the count sometimes refers to "Defendants" collectively and that the FAC does not "not indicate the acts or omissions which are said to have been negligently performed by Double AA." (Dec. 15, 2025 Memorandum of Points & Authorities, p. 9, ll. 19–20.) The quoted allegation from the eighteenth paragraph of the FAC shows this contention is without merit. The FAC alleges Double AA is (1) liable for failing to exclude Aish from the premises and (2) vicariously liable for the failure of its employees to render aid. If either theory of liability is adequately alleged, then the demurrer to this cause of action must be overruled.

The latter theory is the same as that at issue in *Morris v. De La Torre* (2005) 36 Cal.4th 260 (*Morris*). There, the Supreme Court held that a business proprietor has a special relationship with

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invitees on the premises under its control and owes a “duty to undertake reasonable and minimally burdensome measures to assist customers or invitees who face danger from imminent or ongoing criminal assaultive conduct occurring upon the premises.” (*Morris*, at p. 270.) When the assault is ongoing, whether the assault could have been foreseen is irrelevant—it takes no foreknowledge to respond to a present danger. (*Id.*, at pp. 270–271.) Thus, the defendant restaurant’s motion for summary judgment could not be granted against the plaintiff who was stabbed in the parking of a restaurant and where the defendant’s employees witnessing the assault failed to telephone the police. (*See id.*, at pp. 267, 278.)

Double AA’s contention that *Morris* “is highly fact-dependent and not clearly applicable on demurrer” because it involved a motion for summary judgment misses the mark. (Jul. 2, 2026 Memorandum of Points & Authorities, p. 4, l. 22.) The case establishes a duty in circumstances plainly analogous to those alleged in the FAC, and Double AA’s attempt to distinguish the case because it involved gang members, a knife, and a restaurant focuses on insignificant differences for purposes of this demurrer—the nature of the business, the instrumentality of the assault, and the affiliations of the attacker are entirely irrelevant to the proprietor’s duty and breach.

The FAC alleges that Double AA’s employees witnessed the ongoing assault, failed to telephone the police, were acting in the course and scope of their employment at the time, and the failure substantially contributed to Yarasir’s injuries. (FAC, ¶¶ 6, 9, 18.) *Moore* and the FAC’s allegations sufficiently show that Double AA owed a duty to take minimally burdensome responsive measures after its employees became aware of the assault. An allegation that an employee acted “in the course and scope of his said employment” is sufficient for purposes of demurrer to show the employees were on duty and to support a respondeat superior. (*Martin v. Leatham* (1937) 22 Cal.App.2d 442, 446; see *Connell v. Clark* (1948) 88 Cal.App.2d 941, 944.) The causal connection is fairly inferable from the stated allegations: had police been summoned and intervened, fewer or less severe injuries would have been sustained.

Accordingly, the demurrer to the second and sixth causes of action is OVERRULED.

*B. 3rd Cause of Action: Negligent Supervision*

The third cause of action is for negligent supervision, based on Double AA’s alleged failure to train its employees to take minimally burdensome responsive measures such as calling the police when fellow employees are under assault. (FAC, ¶ 21.)

Double AA’s arguments as to this cause of action are the same—that neither it and its employees owed the duty that *Moore* says they do. However, since they do owe a duty to take such responsive measures under the facts alleged, it follows that Double AA has a duty to train and supervise employees to fulfill that duty.

Accordingly, the demurrer to the third cause of action is OVERRULED.

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*C. 4th Cause of Action: False Imprisonment*

The fourth cause of action is for false imprisonment, and Double AA's liability is based on a respondeat superior theory for Aish's intentional conduct. In her opposition, Yarasir concedes the cause of action is demurrable with respect to Double AA. She asks instead for leave to amend or, alternatively, for confirmation that the count will proceed against Aish.

Yarasir does not show at all the manner in which she believes the cause of action against Double AA is 'readily curable,' therefore the latter alternative is granted: demurrer to the fourth cause of action as asserted against Double AA is SUSTAINED without leave to amend.

*D. Workers' Compensation*

While the parties discuss whether workers' compensation is the exclusive remedy for any claims in the opposition and reply memoranda, the issue was not raised in the moving papers as grounds for demurrer, and the Court declines to consider it.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

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09:00 AM

25-CIV-05851      JOANNE SMITH, ET AL VS. ANDRE NICOLAS GAY M.D., ET AL  
LINE 6

JOANNE SMITH  
ANDRE NICOLAS GAY M.D.

ERIC B. STRONGIN  
D. SCOTT BARBER

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DEFENDANT GOLDEN OAK HOLDINGS, LLC dba VASONA CREEK HEALTHCARE  
CENTER'S PETITION TO COMPEL ARBITRATION

TENTATIVE RULING:

The Petition to Compel Arbitration by Defendant Golden Oak Holdings, LLC dba Vasona Creek Healthcare Center ("Defendant" or "Vasona Creek") is DENIED.

*Plaintiff's Evidentiary Objections*

Nos. 1, 5, 7, 8: OVERRULED

Nos. 2-4, 6: SUSTAINED.

*Plaintiffs JoAnne Smith's and Jay Smith's ("Plaintiffs") late opposition*

Defendant objects to Plaintiffs' late opposition. The court exercises its discretion to consider Plaintiffs' late opposition and OVERRULES the objection. Plaintiffs are cautioned to comply with the time frame for filing and serving papers in the future.

*The arbitration agreement*

Defendant Vasona Creek seeks to compel arbitration of Plaintiffs' claims based on an arbitration agreement signed by Plaintiff JoAnne Smith ("Mrs. Smith"). The arbitration agreement states in relevant part:

1. It is understood that any dispute as to medical malpractice, that is as to whether any medical services rendered under this contract were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered or not rendered, **will be determined by submission to arbitration as provided by the Federal Arbitration Act, 9 U.S.C. Section 1 et seq. ("F.A.A.")**, and not by a lawsuit or resort to court process except as California law provides for judicial review of arbitration proceedings. Both parties to this contract, by entering into it, are giving up their constitutional right to have any such dispute decided in a court of law before a jury, and instead are accepting the use of arbitration. The Parties agree that any such action or claim must be brought within the

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